

Conclusion

Defendants' motion to set aside the defaults is **GRANTED**. Defendants shall file their responsive pleading within 10 days of notice of entry of this order.

9. 9:00 AM CASE NUMBER: C26-00258
CASE NAME: JESSICA JACKSON VS. 24 HOUR FITNESS USA, LLC
STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT
FILED BY: 24 HOUR FITNESS USA, LLC

TENTATIVE RULING:

Defendant First Class Properties, LLC's Motion to Strike Portions of Plaintiff's Complaint is **GRANTED** in part and **DENIED** in part as follows:

The motion to strike Paragraphs 10(f) and 14a(2) is **GRANTED** with leave to amend. Plaintiff has 15 days from notice of entry of this order to file an amended complaint alleging facts to show malice under Civil Code section 3294(c) and corporate liability under Civil Code section 3294(b). If Plaintiff cannot meet this deadline but later discovers facts supporting a punitive damages claim through discovery, she may file a motion for leave to amend the complaint.

The motion to strike Paragraphs L-1 and GN-1(3), which contain allegations of gross negligence, is **DENIED**.

The motion to strike Paragraph GN-1(5), which contains allegations of statutory violations, is **DENIED**.

Defendant shall prepare the order and file and serve notice of entry of order.

I. Background

This case arises from a slip-and-fall incident occurring on January 23, 2024, at a 24 Hour Fitness facility in Brentwood, California. Plaintiff Jessica Jackson was an invited guest at the facility when she slipped and fell on liquid that had accumulated on the floor as a result of an unaddressed leak, sustaining injuries.

According to the complaint, Plaintiff "was lawfully on Defendants' premises, located at or near 5961 Lone Tree Way, Brentwood, CA 94513, when suddenly and without notice, Plaintiff slipped and fell due to a leak that had accumulated on the floor which presented a dangerous condition." Plaintiff alleges that "Defendants breached their duty to Plaintiff by failing to address, alleviate, remove and/or remedy the dangerous condition and/or activity on Defendants' premises, and by failing to warn people, including Plaintiff, of the presence of such a dangerous condition, despite having adequate time and notice to do so." Plaintiff characterizes this conduct as constituting "a want of even scant care and an extreme departure from the ordinary standard of conduct" and "such outrageous lack of care" in the context of the situation. (Complaint, Prem. L-1.)

Defendants are 24 Hour Fitness USA, LLC, 24 Hour Fitness, 24 Hour Fitness Holdings LLC, All Day AcquisitionCo LLC, and First Class Properties, LLC, along with fictitiously named parties. Plaintiff alleges that the various corporate entities are agents, owners, managers, partners, joint venturers, employers, and successors in interest to one another.

Plaintiff's January 27, 2026 complaint asserts causes of action for premises liability and general negligence. The premises liability cause of action includes counts for negligence and willful failure to warn under Civil Code section 846. Within these causes of action, Plaintiff alleges gross negligence and seeks punitive damages under Civil Code section 3294. She also alleges that the defendants violated the Americans with Disabilities Act, California Health and Safety Codes, building codes, and various ordinances.

Defendant First Class Properties, LLC now moves to strike the following portions of the complaint: (1) Paragraph 10(f), alleging Defendants acted with oppression, fraud, and malice under Civil Code § 3294; (2) Paragraph 14 a.(2), the prayer for punitive damages; (3) Paragraphs L-1 and GN-1(3), asserting gross negligence; and (4) Paragraph GN-1(5), alleging violations of the ADA, California Health & Safety Codes, building codes, and ordinances.

II. Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc. § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. § 436, subds. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

III. Discussion

A. Meet and Confer

Before filing a motion to strike, the demurring or moving party shall meet and confer with the party who has filed the pleading and shall file a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 435.5, subd. (a).)

Defense counsel complied, or substantially complied, with the meet and confer requirement before filing this motion. (See Declaration of Demurring Party filed on March 3, 2026.)

B. Motion to Strike

1. Punitive Damages

Under Civil Code section 3294, "[i]n an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the Defendant has been guilty of oppression, fraud, or malice, the Plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the Defendant." (Cal. Civ. Code § 3294(a).) Malice is defined as "conduct which is intended by the Defendant to cause injury to the Plaintiff or despicable

conduct which is carried on by the Defendant with a willful and conscious disregard of the rights or safety of others." (*Id.* § 3294(c)(1).) "Used in its ordinary sense, the adjective 'despicable' is a powerful term that refers to circumstances that are 'base,' 'vile,' or 'contemptible.' [Citation.] As amended to include this word, the statute plainly indicates that absent an intent to injure the Plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the Plaintiffs' interests. The additional component of 'despicable conduct' must be found." (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

"Corporations are legal entities which do not have minds capable of recklessness, wickedness, or intent to injure or deceive. An award of punitive damages against a corporation therefore must rest on the malice of the corporation's employees." (*Cruz v. Homebase* (2000) 83 Cal. App. 4th 160, 167.) Section 3294(b) provides that an employer cannot be held liable for employee acts unless "the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice." (Cal. Civ. Code § 3294(b).) "The advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (*Id.*)

Since Plaintiff does not allege intent to injure, she must plead despicable conduct. Her allegation that Defendant failed to address and warn of a dangerous condition describes ordinary negligence in facility maintenance and safety protocols, conduct that is neither base, vile, nor contemptible. Additionally required for corporate liability is an allegation that an officer, director, or managing agent had advance knowledge of the hazard and employed wrongful conduct with conscious disregard for safety, or authorized or ratified such conduct, or was personally guilty of oppression, fraud, or malice. The complaint contains no non-conclusory allegations to show corporate liability under these standards.

The motion to strike Paragraphs 10(f) and 14 a.(2) is GRANTED with leave to amend.

2. Allegations of Gross Negligence

Defendant moves to strike Paragraphs L-1 and GN-1(3), which contain allegations that Defendant's conduct constitutes a "want of even scant care" and an "extreme departure from the ordinary standard of conduct." Courts may strike allegations that are "not essential to the statement of a claim or defense," or "neither pertinent to nor supported by an otherwise sufficient claim or defense." (Code Civ. Proc. § 431.10(b).)

Though gross negligence is not a separate cause of action, allegations of gross negligence are material to Plaintiff's negligence claim, particularly because they may defeat an affirmative defense. (See *Anderson v. Fitness Internat., LLC* (2016) 4 Cal.App.5th 867, 880 [shifting burden on summary judgment when "a complaint alleges facts demonstrating gross negligence in anticipation of a release"].)

"Gross negligence is pleaded by alleging the traditional elements of negligence: duty, breach, causation, and damages. [Citation.] However, to set forth a claim for 'gross negligence' the Plaintiff must allege extreme conduct on the part of the Defendant." (*Rosencrans v. Dover Images, Ltd.* (2011)

192 Cal.App.4th 1072, 1082.) "Gross negligence" requires "either a 'want of even scant care' or 'an extreme departure from the ordinary standard of conduct.'" (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747, 754.)

Defendant argues that Plaintiff's allegations are conclusory and lack sufficient factual support for gross negligence. The Court disagrees. It is well established that negligence may be pleaded in general terms. (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 154-55.) Defendant does not cite any authority establishing that gross negligence requires greater pleading particularity than ordinary negligence. If Defendant wants more particular information regarding Plaintiff's allegations of gross negligence, it may obtain that information through discovery

The motion to strike Paragraphs L-1 and GN-1(3) is DENIED.

3. Allegations of Statutory Violations

Defendant moves to strike Paragraph GN-1(5), which states "Defendants were subject to and violated ADA, California Health & Safety Codes, building codes, and/or ordinances and these violations actually and legally caused Plaintiff's damages, the occurrence resulting in the damages was of a nature that the regulation was designed to prevent and Plaintiff was among the class of persons for whose protection the regulation was adopted." Defendant argues the pleading is defective because Plaintiff has failed to specify which particular statutes were violated and has not alleged any facts showing that any specific statute applies to her causes of action. Without identification of the precise statutory provisions, Defendant claims it cannot know the nature of the accusations against it or determine whether Plaintiff falls within the class of persons the alleged statutes are intended to protect.

Plaintiff responds that the allegations are proper because California's notice pleading standard requires only that a complaint set forth the essential facts with sufficient clarity to notify Defendant of the general nature of the claim, and specific code sections need not be cited at the pleading stage. Plaintiff argues she has properly invoked the doctrine of negligence per se under Evidence Code section 669 to establish the standard of care applicable to Defendant's operation of the gym.

The Court finds that Paragraph GN-1(5) satisfies notice pleading requirements by alleging that Defendant violated applicable safety statutes designed to prevent slipping hazards for commercial invitees. Plaintiff alleges that "the occurrence resulting in the damages was of a nature that the regulation was designed to prevent and Plaintiff was among the class of persons for whose protection the regulation was adopted." This allegation gives Defendant adequate notice of Plaintiff's general claim without requiring pleading of evidentiary detail at this early stage of the litigation. If Defendant remains uncertain as to the specific statutory provisions, it may obtain that information through discovery.

The motion to strike Paragraph GN-1(5) is DENIED.

10. 9:00 AM CASE NUMBER: C26-00553
CASE NAME: KENNETH COLE VS. HYUNDAI MOTOR AMERICA
MOTION TO COMPEL ARBITRATION
FILED BY: HYUNDAI MOTOR AMERICA
TENTATIVE RULING:

The unopposed motion to compel arbitration is **GRANTED**. The Court will issue the proposed order after hearing submitted with the moving papers.

11. 9:00 AM CASE NUMBER: C26-01362
CASE NAME: JINLIANG LI VS. FIDELITY BROKERAGE SERVICES LLC
MOTION TO COMPEL ARBITRATION
FILED BY: FIDELITY BROKERAGE SERVICES LLC
TENTATIVE RULING:

The unopposed motion to compel arbitration is **GRANTED**. The Court will issue the proposed order after hearing submitted with the moving papers.

12. 9:00 AM CASE NUMBER: MSC08-02442
CASE NAME: PUTNAM LEASING COMPANY INC VS. RICARDO CHAVEZ
TO BE RELIEVED AS COUNSEL
FILED BY: PUTNAM LEASING COMPANY INC A CONNECTICUT CORPORATION
TENTATIVE RULING:

Herzlich & Blum, LLP, including attorneys Allan Herzlich and Jerome J. Blum ("Counsel") filed a Motion to be Relieved as Counsel on April 3, 2026 (the "Motion to be Relieved as Counsel"). The Motion to be Relieved as Counsel was set for hearing on August 10, 2026.

Background

Counsel seeks to be relieved as attorneys for "Putnam Leasing Company I, LLC." The Court notes that the name on the operative judgment is Putnam Leasing Company, Inc. The Court construes the motion as seeking to be relieved from representation from the plaintiff and judgment creditor in this case.

The supporting declaration filed by Counsel indicates that Counsel are both retiring and closing their practice. See Declaration filed April 3, 2026, ¶2. The client has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. Counsel to submit a revised proposed form of order reflecting the proper name of the client entity under which this case was prosecuted.